

Defending the Enterprise AI Stack

Tactical Procurement Frameworks for Probabilistic Systems

[SYS_AUTH: RUNG 300 // ARCHITECT LEVEL]



SYSTEM NOTICE:
Educational payload only.

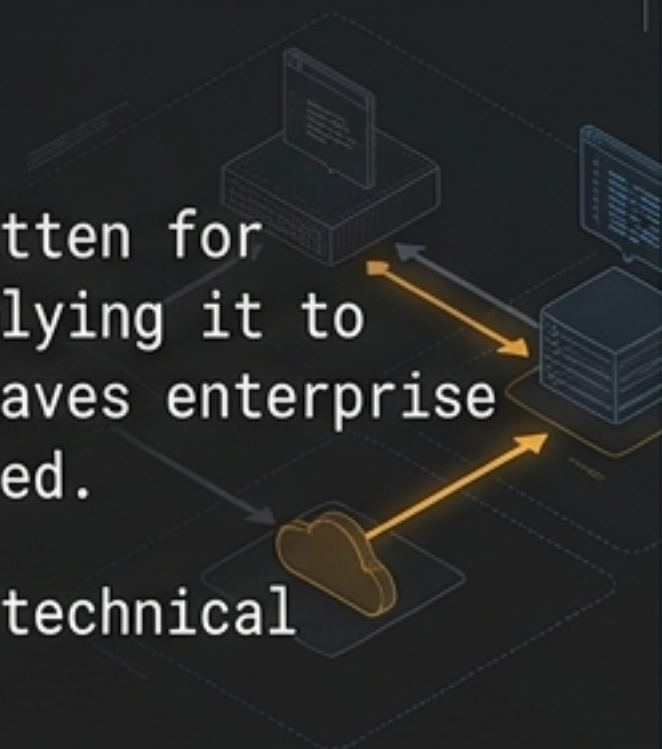
This module does not
constitute legal advice.

Public exemplars utilized
for structural reference.

THE CONFLICT

Standard SaaS paper was written for deterministic software. Applying it to probabilistic AI systems leaves enterprise architecture entirely exposed.

Procurement requires rigid technical positions, not legal vibes.



THE MISSION

Arming architects with a negotiation matrix—moving from passive consumers to active defenders of enterprise risk and IP.



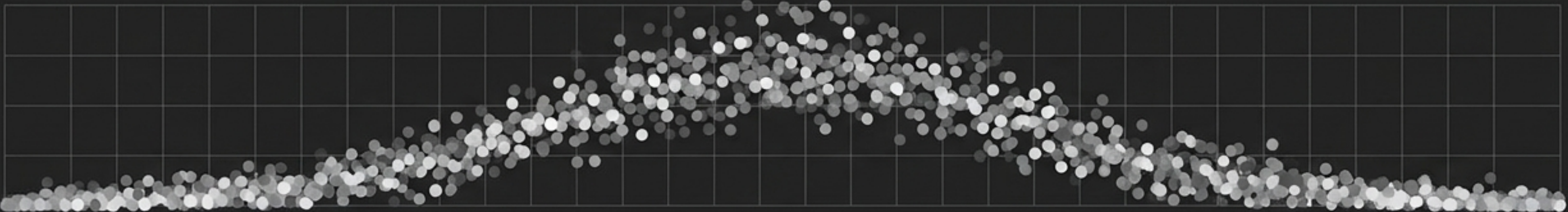
STANDARD SAAS (DETERMINISTIC)



METRIC_ENFORCEMENT: Uptime (SLA) = 99.99%

Ordinary contracts enforce the straight line. You are buying the scatter plot. We must bridge the gap.

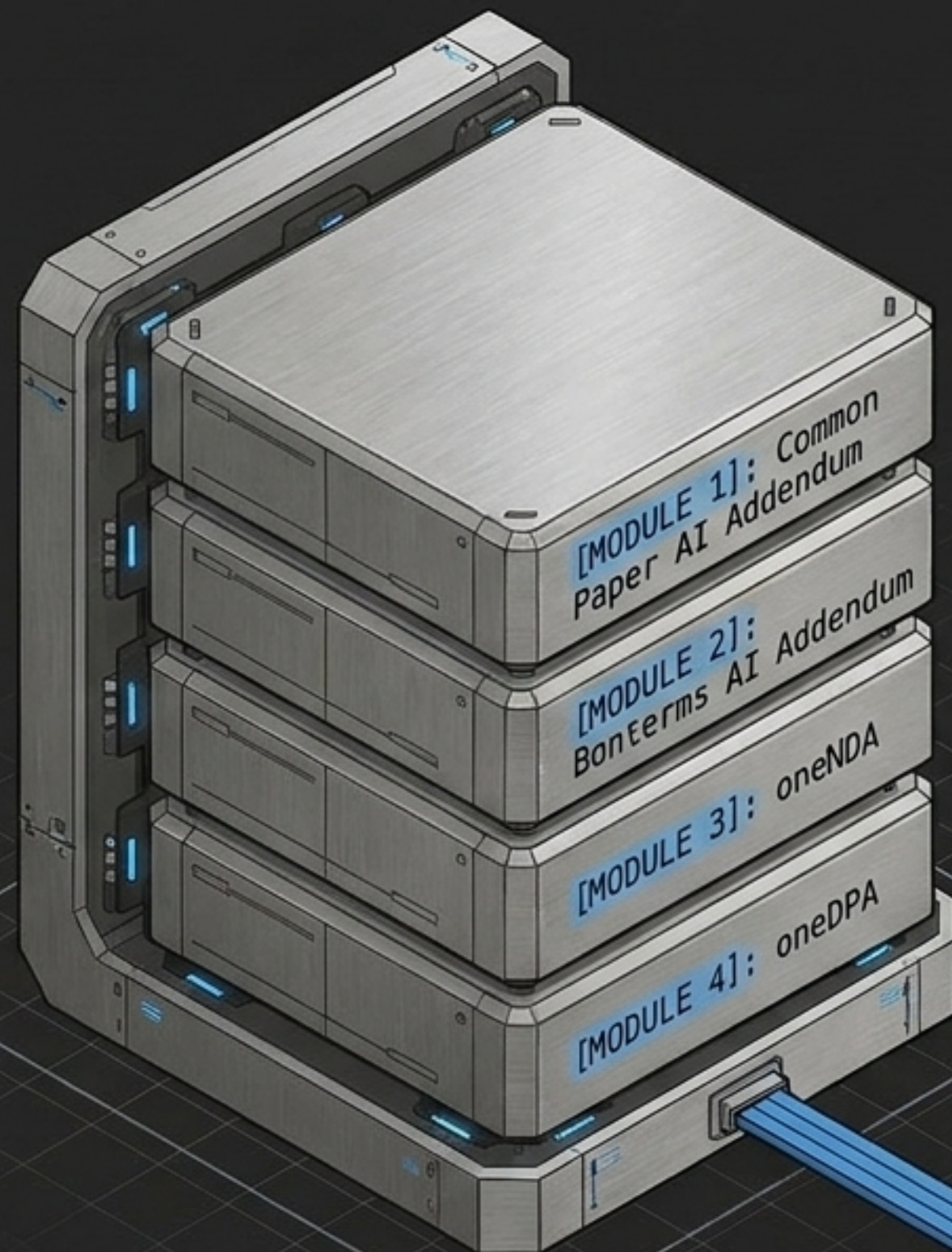
AI SYSTEMS (PROBABILISTIC)



METRIC_ENFORCEMENT: Output Unpredictable. Errors Native to Architecture.

THE BASELINE ARCHITECTURE

Customer retains data and output ownership. Default configuration must block training on customer content unless explicit fallback logic is engaged.



THE ASK

The Target
Architecture.

Maximum enterprise
protection and zero
assumed
probabilistic risk.

[METRIC_TARGET: 0% RISK
| STATUS: NOMINAL]

THE COUNTER

The Vendor
Compromise.

Acceptable friction.
Approved fallbacks
built on technical
realities
(e.g., SCL-style
procurement clauses).

[METRIC_FRICTION: 15% TOLERANCE
| STATUS: NEGOTIATING]

THE WALK-AWAY

The System Failure
Point.

The absolute floor.
Crossing this
threshold guarantees
system breakage or
catastrophic
enterprise exposure.

[METRIC_FAILURE: >0% EXPOSURE
| STATUS: CRITICAL ALERT]

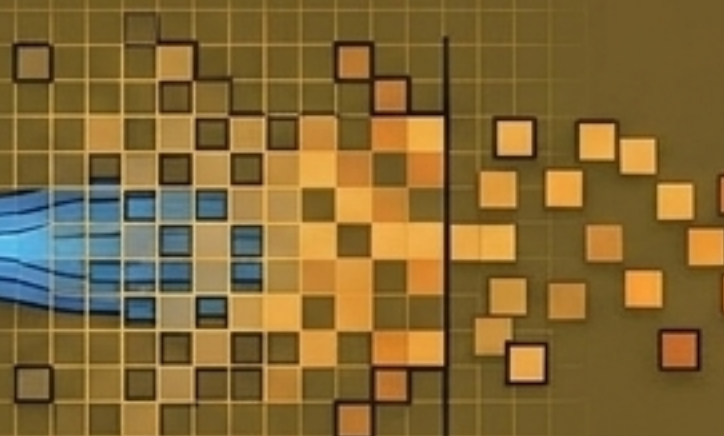
ZERO TRAINING RIGHTS



[STATUS: SECURED]

Vendor may not use any customer content, inputs, or outputs for model training.

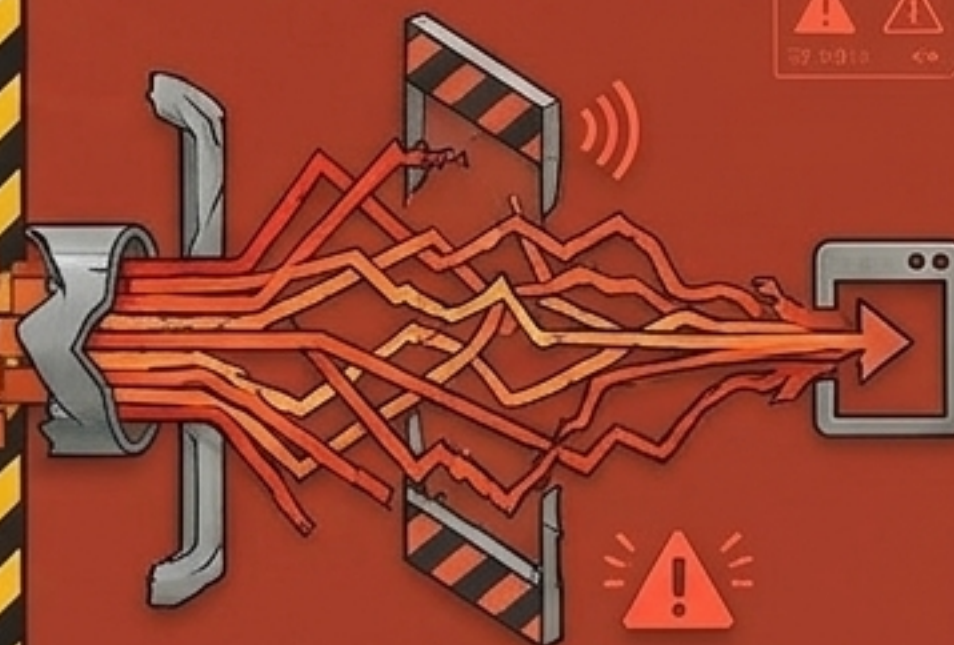
AGGREGATED TELEMETRY ONLY



[METRIC_FRICTION: AGGREGATED]

Fallback: Telemetry data allowed only if strictly aggregated and mathematically de-identified.

RAW TRAINING / IP HIJACK



[METRIC_FAILURE: IP BREACH] ⚠

Walk-away trigger: Vendor attempts to claim IP rights to outputs, or retains the right to train on raw telemetry or user prompts.



180-DAY NOTICE

Ample time for safe architectural migration and prompt engineering updates.

[METRIC_TARGET: 180 DAYS
| STATUS: NOMINAL]

PERFORMANCE NOTICE

Vendor agrees to specific SCL-style clauses regarding model versioning and performance degradation alerts.

[METRIC_FRICTION: PERFORMANCE CLAUSES
| STATUS: NEGOTIATING]

90-DAY FLOOR

Less than 90 days deprecation window. This is the absolute floor before RAG and prompts break during migration. Do not sign.

[METRIC_FAILURE: <90 DAYS EXPOSURE
| STATUS: CRITICAL ALERT]
| STATUS: CRITICAL ALERT]

[UNCAPPED IP INDEMNITY]

Full protection against
copyright infringement
generated by
probabilistic outputs.



[METRIC_TARGET: COMPREHENSIVE]
| STATUS: SECURED
| [SYSTEM_OPTIMAL]

[MULTIPLIER ON FEES]

Liability capped at a
negotiated multiple of
annual contract value,
with specific indemnity
voiders explicitly
defined.

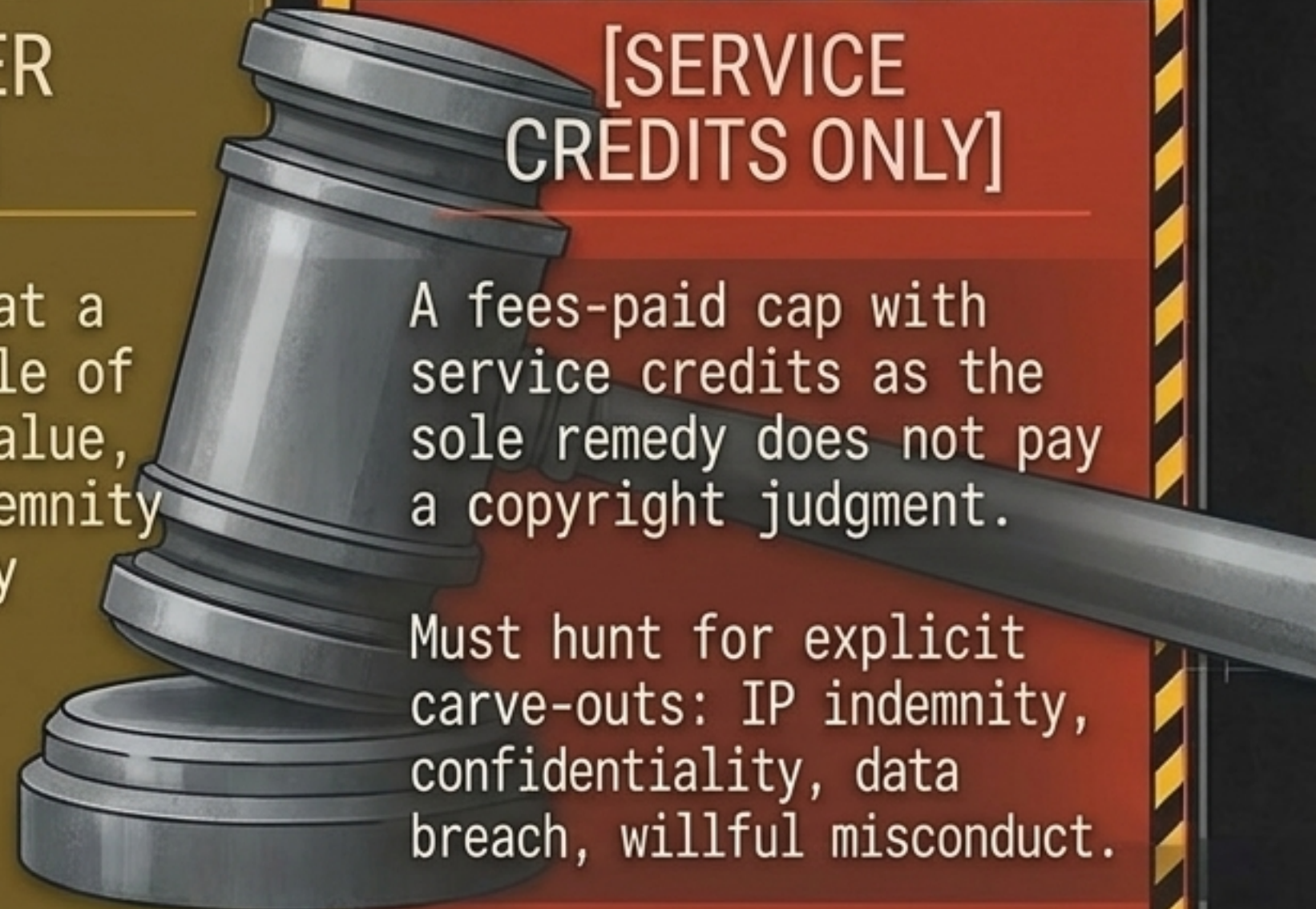
[METRIC_FRICTION: NEGOTIATED CAP
| STATUS: AT RISK
| [SYSTEM_ALERT]

[SERVICE CREDITS ONLY]

A fees-paid cap with
service credits as the
sole remedy does not pay
a copyright judgment.

Must hunt for explicit
carve-outs: IP indemnity,
confidentiality, data
breach, willful misconduct.

[METRIC_FAILURE: INADEQUATE
REMEDY] ⚠️
| STATUS: CRITICAL ALERT
| [SYSTEM_FAILURE]



EXPLICIT AI WARRANTIES

Vendor assumes output liability and guarantees probabilistic error coverage.

PROTECTIVE AI
CONTRACT CANOPY

[METRIC_TARGET: COMPREHENSIVE]
| STATUS: SECURED
| [SYSTEM_OPTIMAL]

SHARED RISK

Vendor flow-down of specific AI policy limits.

PROBABILISTIC
AI ERRORS

[METRIC_FRICTION: FLOW-DOWN LIMITS]
| STATUS: NEGOTIATING
| [SYSTEM_ALERT]

RELYING ON STANDARD CYBER

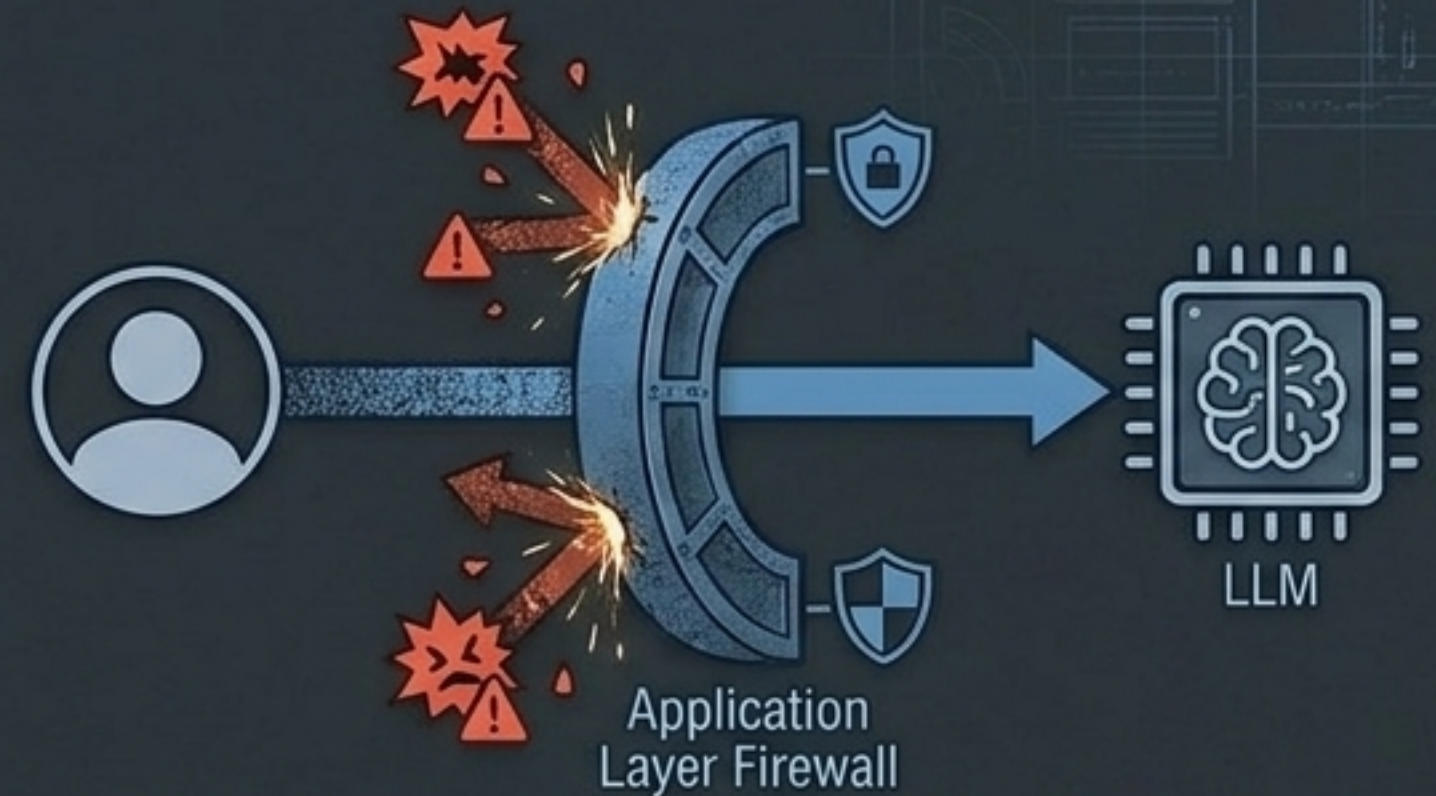
Standard cyber policies often exclude losses from probabilistic AI errors. Relying solely on legacy insurance without AI-specific contract carve-outs leaves the enterprise entirely exposed.

[METRIC_FAILURE: UNPROTECTED
EXPOSURE] ⚠️
| STATUS: CRITICAL ALERT
| [SYSTEM_FAILURE]

THE PRODUCT REALITY: AUP ENFORCEMENT



Policy pasted into a wiki.
Reliant on human compliance.
High probability of probabilistic leakage.



Hardcoded AUP enforcement.
Block the prohibited categories
programmatically in the application.

THE ASK

THE COUNTER

THE WALK-AWAY

Deprecation
Window

180-Day
Notice

Performance
Notice

< 90 Days
[RAG Failure]

Training
Rights

Zero Training
Rights

Aggregated
Telemetry

Raw
Training

Liability
Cap

Uncapped IP
Indemnity

Multiplier
on Fees

Service
Credits Only

Insurance /
Errors

Explicit AI
Warranties

Flow-down
AI Policy

Relying on
Standard Cyber

[SYSTEM SECURED:
READY FOR PROCUREMENT]